Superior Court of the State of California
County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: May 29, 2026

The court will endeavor to post tentative rulings on the Court's website by 3 p.m. on the preceding Thursday. However, ongoing proceedings may prevent posting by that time. Do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative ruling, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is heard on Friday at 10 a.m. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at https://www.occourts.org/civil-remote-hearings , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at Civil Desktop Remote Appearance Video, and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at Civil Mobile Application Remote Appearance Video. If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: Privately-Retained Court Reporter Policy.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

	Case Name	Tentative
50	***Capital One, N.A. vs. Jose***	The motion of defendant Jomy Ovelil, sued as Jomy Jose, for an order compelling plaintiff Capital One, N.A. to comply with his debt validation request is **DENIED**. In the context of this case, there is no legal provision for the court to issue the order requested. If Defendant were to propound discovery requests on Plaintiff seeking the information about the debt alleged in the complaint, the court could compel compliance with those requests as provided for in the Discovery Act. See e.g. Code Civ. Proc. §§ 2030.020, 2030.030, 2030.290 ,2030.300, 2031.020, 2031.020, 2031.300, 2031.310. However, in the absence of an obligation by Plaintiff to act in connection with this case, the court cannot compel Plaintiff to act.
51	***Chen vs. General Motors LLC***	No tentative ruling.
52	***Off calendar***	
53	***Global Venture LLC vs. Global LA Investing LLC***	Plaintiff Global Venture, LLC's motion for summary adjudication is **granted** as to (1) Plaintiff's first cause of action for breach of Promissory Note against Defendants Global LA and Global AZ and (2) Plaintiff's second cause of action for breach of Secured Repayment Note with Personal Guaranty, as amended, against Defendants Global LA, Global AZ, Mohammad Azadzoi and Zarmina Azadzoy. The motion is **denied** as to the fourth cause of action against Defendant EM Investment, LLC for judicial foreclosure regarding 11685 Picturesque Drive, Studio City, CA 91604, APN No. 2369-033-013.

		The motion is **granted** as to the fourth cause of action for judicial foreclosure regarding 580 N Hargrave Street, Banning, CA 92220, APN 541-081-001, 8041 Bulwer Drive, Los Angeles, CA 90046, APN 5565-030-007, and 3929 Fredonia Drive, Los Angeles, CA 90068, APN No. 2380-002-033. Plaintiff's request for judicial notice is **granted**. Defendant EM Investment Group, LLC's request for judicial notice is also **granted.** Plaintiff's evidentiary objections are all **overruled**. ***Defendants' deficient separate statement*** Code Civ. Proc., § 437c(b)(3) provides: The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. In addition, CRC, Rule 3.1350 (f) states that for each fact, "the response must unequivocally state whether that fact is "disputed" or "undisputed." While the Court's ruling is based on the substance of the parties' arguments and

evidence, it is worth pointing out that in response to a number of Plaintiff's facts, Defendants do not clearly state whether the facts are disputed or undisputed in the separate statement. (ROA 161; see facts 2-5, 8-11, 15-18, 20-23, 25-26, 31.) The court in Thatcher v. Lucky Stores, Inc. (2000) 79 Cal.App.4th 1081, 1086 notes that "subdivision (b) of section 437c allows the court, in its discretion, to grant summary judgment if the opposing party fails to file a proper separate statement," but cautions that "this provision does not authorize doing so without first determining that the moving party has met its initial burden of proof."

Substantive merits

Plaintiff's first cause of action for breach of Promissory Note against Defendants Global LA and Global AZ

The elements of breach of contract/guaranty are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (Miles v. Deutsche Bank National Trust Company (2015) 236 Cal.App.4th 394, 402.)

Plaintiff demonstrates that Defendants Global LA, Global AZ, and Plaintiff entered into a written promissory note whereby Defendants Global LA and Global AZ agreed to borrow $500,000 from Plaintiff; Plaintiff performed under the promissory note by lending Defendants $500,000; The promissory note required Defendants to repay the $500,000 principal by December 1, 2023; and Defendants

		failed to repay any of the $500,000. (ROA 161, SS Fact Nos. 1-5.) Defendants do not effectively dispute these facts. Defendants state in their separate statement, that they did not borrow the money, that the money was for mortgages and repairs of the property, and the "note was wrapped into the November 2023 Note." (ROA 161.) Defendant Azadzoi admitted multiple times during his deposition that the $500,000 was never paid back. (Azadzoi Depo. at 45:17-18, 46:10-18, 49:16-21.) In Adzadzoi's declaration, he acknowledges signing the promissory note. (Azadzoi Decl., ¶ 27.) He states that he attempted to discuss "repayment, extension or a workout arrangement" with Plaintiff, but was not able to reach Plaintiff. (Azadzoi Decl., ¶ 28.) Defendants fail to show they were prevented from repaying the $500k promissory note; only that Plaintiffs did not respond to their communication regarding the payment. This does not excuse Defendants' breach. Plaintiff has established that Defendants breached the promissory note and Defendants have not shown a triable issue of material fact. **Plaintiff's second cause of action for breach of Secured Repayment Note with Personal Guaranty, as amended, against Defendants Global LA, Global AZ, Mohammad Azadzoi and Zarmina Azadzoy** Plaintiff demonstrates that Plaintiff and Defendant Global LA executed a secured repayment note in the amount of $2,828,353; Defendant Azadzoi and his wife Defendant Azadzoy personally guaranteed Defendant

		Global LA's obligations under the Secured Repayment Note; Defendants received the $2,828,353; Plaintiff and Defendant Global LA signed an amendment to the Secured Repayment Note, which increased the principal amount to $2,830,253; repayment of the principal amount was due by November 3, 2024; and Defendants are in default in the amount of $1,614,253, not including interest, legal fees, or costs. (SS Fact Nos. 6-12.) Defendants attempt to dispute these facts, arguing that there was a failure of consideration for the notes. This is not supported by the evidence as Azadzoi admitted at his deposition that the initial $2.8 million was wired to escrow for ten properties that were purchased. (Azadzoi Depo at 57:6-58:8, 60:12-24, 62:11- 17, 92:2-11.) To the extent that Azadzoi's declaration filed with the opposition to the MSA contradicts his deposition testimony, the Court disregards the declaration statements. In opposing a motion for summary judgment, a party is not permitted to submit a declaration to contradict their own deposition testimony in order to create a triable issue of material fact. (See Visueta v. Gen. Motors Corp. (1991) 234 Cal.App.3d 1609, 1613 ["Admissions or concessions made during the course of discovery govern and control over contrary declarations lodged at a hearing on a motion for summary judgment"; see also State Farm Mut. Auto Ins. Co. v. Eastman (1984) 158 Cal.App.3d 562, 573 ["The issue raised is whether a party can rely on contradictions in his own testimony to create a triable issue of fact for purposes of a summary judgment motion. We answer this question in the negative."].)

		Defendants additionally argue that the Note was signed under economic duress, but again, fails to submit evidence of this. Defendants cite to Azadzoi's testimony that the deeds of trust signed in reliance on wire transfers that were promised but never made "turned my business upside down" and left him without the promised funds while encumbering his entities' properties. (Azadzoi Depo. at 75:1-10.) This is not economic duress. It has been established that Defendants had received the $2.8 million when they signed the Note. An alleged promise to pay additional funds does not constitute a threat or oppressive conduct. Defendants’ argument that there is a triable issue of fact as to the amount owed under the Note is similarly unsupported by the evidence. Defendants contend that Plaintiff’s calculation of $1,614,253 as the remaining balance ($2,828,353 - $1,216,000) omits a number of credits. (Defendants' Responses to Special Interrogatory No. 61; Azadzoi Depo. at 132:13-133:18, 171:2-173:12.) Examining the evidence shows that these credits that Defendants reference were already part of Plaintiff’s calculation. For example, both parties cite to the same portion of Azadzoi’s deposition. (Azadzoi Depo. at 141:15-144:13 [stating that an estimated $1,216,000 was returned], and at 96:2- 144:13, authenticating investment statement.) Adding up Defendants’ numbers amounts to $1,215,000…just under the $1,216,000 that Plaintiff used in its calculation. Defendants also fail to provide any evidence supporting its additional arguments that Plaintiff received additional funds in repayment

		of the Note, or that any mortgage payments were to be credited to the amount owed. The Court accordingly finds that Plaintiff has established breach of the Secured Repayment Note with Personal Guaranty; Defendants do not create a triable issue of material fact with respect to the Note at issue. **Plaintiff's fourth cause of action for judicial foreclosure regarding 580 N Hargrave Street, Banning, CA 92220, APN 541-081-001; (4) Plaintiff's fourth cause of action for judicial foreclosure regarding 8041 Bulwer Drive, Los Angeles, CA 90046, APN 5565-030-007; (5) Plaintiff's fourth cause of action for judicial foreclosure regarding 11685 Picturesque Drive, Studio City, CA 91604, APN No. 2369-033-013; and (6) Plaintiff's fourth cause of action for judicial foreclosure regarding 3929 Fredonia Drive, Los Angeles, CA 90068, APN No. 2380-002-033.** "The beneficiary or trustee named in a deed of trust . . . with power of sale upon real property or any interest therein to secure a debt or other obligation, . . . shall have the right to bring suit to foreclose the same in the manner and subject to the provisions, rights and remedies relating to the foreclosure of a mortgage upon such property." (Code Civ. Proc., § 725a.) "When a borrower defaults on a loan secured by real property, the lender can use one of three procedures to recover the debt. First, the lender can initiate a judicial foreclosure by filing a lawsuit." (Coker v. JPMorgan Chase Bank, N.A. (2016) 62 Cal.4th 667, 672 [citing CCP, § 725a]; see also Arabia v. BAC Home Loans Servicing, L.P. (2012) 208 Cal.App.4th 462, 472 ["right to

		foreclose thus arises out of an obligation (e.g.,) the promissory note and related deed of trust.”]) Plaintiff submits evidence that in November of 2023, Plaintiff and Defendant Global LA executed a Secured Repayment Note in the amount of $2,828,353. (SS Fact No. 13, 18, 23, 28.) Global LA’s obligations under the Secured Promissory Note were secured by deeds of trust recorded on the four real properties located at 580 N Hargrave Street, Banning, CA; 8041 Bulwer Drive, Los Angeles, CA; 11685 Picturesque Drive, Studio City, CA; and 3929 Fredonia Drive, Los Angeles, CA. (SS Fact No. 14, 19, 24, 29.) Defendants received the $2,828,353 under the Secured Repayment Note. (SS Fact No. 15, 20, 25, 30.) In January of 2024, Plaintiff and Defendant Global LA signed a First Amendment to Secured Repayment Note. (SS Fact No. 16, 21, 26, 31.) Defendants are in default under the Secured Repayment Note, as amended, in the amount of $1,614,253, not including interest, legal fees, or costs. (SS Fact No. 17, 22, 27, 32.) Defendants submit the Secured Repayment Notes as well as the Deeds of Trust for the four properties at issue as Exs. 3, 6, and 8-11. The Deeds of Trust for each of the four properties expressly grants Plaintiff the properties “WITH POWER OF SALE,” for the purpose of securing Defendants’ loan obligations. (Plaintiff’s Exs. 8-11.) In opposition, Defendants argue that the secured properties have already been foreclosed upon by third-party lien holders, with Defendants receiving no proceeds, citing to the Azadzoi Depo.

		at 168:1-175:20. (ROA 157, Opposition at 168:1-175:20.) The only one of the four properties referenced in this portion of Defendant's deposition is the Ferdonia property; Azadzoi testifies that this property is not sold but is in preforeclosure and is for sale. (Azadzoi Depo at 168:18-23.) Defendants also vaguely state that the current status, encumbrances, and fair market values of the remaining collateral properties present disputed factual questions regarding the value available to satisfy any judgment. This does not create a triable issue of material fact as to the issues of the default on the promissory note and Plaintiff's deeds of trust. Lastly, Defendants contend that Plaintiff cannot simultaneously pursue a money judgment on the notes while also seeking judicial foreclosure on the same collateral without proceeding in a single action, citing to Walker v. Community Bank (1974) 10 Cal.3d 729, 733-734. This isn't actually a correct statement of the law in Walker, as the court held that "[u]nder California law "the creditor must rely upon his security before enforcing the debt, [and that] [i]f the security is insufficient, his right to a judgment against the debtor for the deficiency may be limited or barred by sections 580a, 580b, 580d, or 726 of the Code of Civil Procedure." It is only when "the creditor sues on the obligation and seeks a personal money judgment against the debtor without seeking therein foreclosure of such mortgage or deed of trust, he makes an election of remedies, electing the single remedy of a personal action, and thereby waives his right

to foreclose on the security or to sell the security under a power of sale." (Id.)

This indicates that the proper course of action is to do what Plaintiff has done here, and seek to foreclose the properties, and to the extent that the security is insufficient, obtain a money judgment insofar as such is not barred by the relevant Code of Civil Procedure sections.

Plaintiff has met its burden and shown that Defendants are indebted to Plaintiff, and Plaintiff holds security interests in the form of the subject deeds of trust. Defendants have not established a triable issue of material fact as to the foreclosure cause of action.

Request for Continuance

Defendants' request for a continuance to conduct additional discovery pursuant to Code Civ. Proc., § 437c(h) is **denied**. Defendants did not submit any declarations regarding their request for a continuance as required pursuant to § 437c(h).

Defendant EM Investment Group

Defendant EM Investment Group LLC opposes the MSA as to the 4th cause of action for judicial foreclosure regarding only 11685 Picturesque Drive.

EM Investment submits evidence that it purchased the property at a foreclosure sale and obtained title thereto, pursuant to the Grant Deed recorded on April 10, 2025. (EM Fact No. 43).

There was a Senior Deed of Trust recorded against the Picturesque Dr. property on 7/19/23

		before the 11/9/23 Deed of Trust that Plaintiff submits. (EM Fact No.37.) Plaintiff's 11/9/23 Deed of Trust is thus a junior lien. Defendant EM later purchased the Picturesque Property at the foreclosure sale, and obtained title thereto, pursuant to the Grant Deed recorded on April 10, 2025 (the "2025 Grant Deed"). (EM Fact No. 43). By operation of law, Plaintiff's Junior Lien was thus extinguished upon the foreclosure by the Senior Deed of Trust at the foreclosure sale, which took place on December 11, 2024. (EM Fact No. 44; see Decon Grp., Inc. v. Prudential Mortg. Cap. Co., LLC (2014) 227 Cal.App.4th 665, 670–71.) Accordingly, the motion for summary adjudication as to Defendant EM Investment with respect to the 4th cause of action concerning the property located at 11685 Picturesque Drive, Studio City, CA 91604 is **denied**, as Plaintiff fails to establish an enforceable lien/security interest on the subject property. Plaintiff shall give notice.
54	***Guzman vs. Cisneros***	Before the Court is Defendants Leobardo Vasquez Cisneros and United Plant Growers Inc.'s unopposed Motion for Summary Judgment of Anastacio Benjamin Tovasquez, Nicholas Ignacio Llano, and Damien Ismael Apurathal's Complaint for negligence/motor vehicle, as well as a Request for Judicial Notice. The unopposed Request for Judicial Notice is **GRANTED**.

Motion for Summary Judgment

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Ibid.) "A prima facie showing is one that is sufficient to support the position of the party in question." (Id. at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258; Nieto v. Blue Shield of Calif. Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a

		triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.) This case arises from a motor vehicle accident that occurred on or about April 20, 2022, on the Southbound Interstate 405 freeway at or near Brookhurst Street, Fountain Valley, California 92708 ("Subject Incident"). (Separate Statement of Undisputed Facts (SSUF) 1.) On April 19, 2024, Plaintiffs filed their Complaint against Defendants alleging two causes of action for Motor Vehicle Negligence and General Negligence. (SSUF 2.) The elements of a cause of action for negligence are (1) the existence of a legal duty to use due care; (2) a breach of that duty; and (3) the breach as a proximate cause of the plaintiff's injury. (Wattenbarger v. Cincinnati Reds, Inc. (1994) 28 Cal.App.4th 746, 751; Federico v. Superior Court (Jenry G.) (1997) 59 Cal.App.4th 1207, 1210–1211; CACI 400.) Here, the form Complaint alleges that: "On or about April 20, 2022… defendants and each of them, negligently, recklessly and without due care, owned, rented, leased, entrusted, operated and/or controlled the motor vehicle and/or otherwise is legally responsible for causing

		plaintiffs to sustain injuries and damages for which the plaintiffs are seeking compensation herein." (Form Complaint, p. 5.) Based on deemed admitted orders, the Court has conclusively established that Defendants did not cause the accident or Plaintiffs' injuries, Plaintiffs have no damages, and it was Plaintiff Vasquez who was negligent. (SSUF 6-16.) Plaintiffs chose not to oppose this Motion. Thus, Plaintiffs have not met their burden to show any triable issue of material fact. The Motion for Summary Judgment is **GRANTED**. Moving Defendants are ordered to serve notice.
55	***Merchant Capital Source, LLC. Vs. Pima Orthopedic Physicians, LLC.***	Before the Court is Plaintiff/Judgment Creditor's Motion to Compel Compliance and for Turnover Order. Although the notice of motion states the motion to compel compliance and turnover order is made against Judgment Debtors Pima Orthopedic Physicians, LLC, dba Pima Orthopedic Physicians, Arizona Medcorp, Inc, dba Knees First, John C. Medlen MD PC, and Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal, Plaintiff/Judgment Creditor is seeking an order compelling a third party, JP Morgan Chase Bank, to release funds. (Motion, 1:22-2:2 and 2:6-8.) There is no proof of service showing the notice of motion and supporting papers were served on any judgment debtor or, in this instance, the third party bank, JP Morgan Chase Bank. (Cal. Rules of Ct., Rule 3.1300(c).)

		The Court notes that Plaintiff/Judgment Creditor inaccurately contends judgment was entered against Claire Benchetrit aka Claire B. Staal aka Kreina Stall on September 13, 2024. (Velen Decl., ¶ 2.) In the Court's October 8, 2025, minute order, the Court specifically noted that the September 13, 2024 judgment dismissed defendant Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal from the action. (October 8, 2025 Minute Order; Judgment by Default.) In that same minute order, the Court denied Plaintiff/Judgment Creditor's ex parte application for a turnover order, The unopposed motion by Plaintiff/Judgment Creditor Merchant Capital Source, LLC dba Zinch ("Judgment Creditor") for an order compelling compliance with a bank levy and a turnover order against Judgment Debtors Pima Orthopedic Physicians, LLC, dba Pima Orthopedic Physicians, Arizona Medcorp, Inc, dba Knees First, John C. Medlen MD PC, and Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal is **DENIED**. Judgment Creditor shall give notice.
56	***Redhead vs. General Motors, LLC***	This ruling addresses Defendant's (General Motors, LLC) Demurrer to the Second Amended Complaint **and** Defendant's Motion to Strike Portions of the Second Amended Complaint. The demurrer brought by Defendant General Motors, LLC ("Defendant") pertaining to the fifth cause of action for fraudulent inducement – concealment alleged in the Second Amended Complaint ("SAC") filed by Plaintiffs Raymond Redhead and Wesco Security Systems, Inc. (collectively, "Plaintiffs") is **OVERRULED in part and SUSTAINED in part with leave to**

		amend. Defendant's motion to strike the prayer for punitive damages from Plaintiffs' SAC is **GRANTED with leave to amend**. As an initial matter, the Court notes the parties' proofs of service did not include the server's email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) The parties are reminded to comply with CCP section 1013b when electronically serving documents. **DEMURRER TO SAC** ***Statute of limitations*** There is no dispute this cause of action is governed by the 3-year statute of limitations set forth in CCP section 338, subdivision (d), which provides as follows: "An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd. (d).) "In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403.) Here, the SAC does not on its face show that the claim is time-barred. The SAC alleges Plaintiff entered into a warranty contract with Defendant regarding the Subject Vehicle on October 8, 2021. (SAC, ¶ 7.) Defendant actively concealed and

		failed to disclose the engine defect to Plaintiffs at the time of sale, repair and thereafter. (Id., ¶¶ 33, 58, 63, 65, 74, 78, and 85.) Defects, including the engine defect, manifested itself within the applicable express warranty period. (Id., ¶ 13.) The applicable express warranty period is 3 years or 36,000 miles for the bumper to bumper warranty and 5 years or 60,000 miles for the powertrain. (Id., Exhibit A.) Based on paragraph 12, the defects manifested within the three or five years Plaintiff owned the Subject Vehicle. The SAC only alleges one engine warranty repair took place on or about July 9, 2024, about seven months before Plaintiffs commenced this action. (Id., ¶ 24.) The SAC also alleges "Plaintiffs discovered Defendant's wrongful conduct alleged herein shortly before filing this action as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them." (SAC, ¶ 36; see, ¶ 75.) Accordingly, the demurrer as to the statute of limitations is **overruled**. ***Sufficiency of allegations*** The elements of a cause of action for fraudulent inducement are (1) a fraudulent representation; (2) to induce contract (or forbearance); and (3) that is not a part of the contract. (A. A. Baxter Corp. v. Colt Industries, Inc. (1970) 10 Cal.App.3d 144, 153-154.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage

		as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see, Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)…Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.'…'Such a transaction must necessarily arise from dire cannot arise between the defendant and the public at large.'" (Rattagan v. Uber Technologies, Inc., 17 Cal.5th at 40-41; see, Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 867 ["A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking;

		it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent."].) "Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843.) The particularity requirement necessitates pleading facts that "show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The requirement that fraud must be pleaded with specificity applies equally to a cause of action for fraud based on concealment. (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.) "California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim . . . . For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the

		general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (Rattagan v. Uber Technologies, Inc., supra, 17 Cal.5th at pp. 43-44.) Plaintiffs did not allege sufficient facts with the necessary specificity to state this cause of action. Accordingly, the demurrer is **sustained with 15 days leave to amend**. **MOTION TO STRIKE SAC** Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract if Plaintiffs prove by clear and convincing evidence that Defendant has been guilty of oppression, fraud, or malice. Malice is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code § 3294, subd. (c)(3).) At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.)

A corporate defendant may not be liable for punitive damages based on the acts of its employees unless the plaintiff alleges and proves that an officer, director, or managing agent of the corporation: (1) was personally guilty of oppression, fraud or malice; or (2) had advance knowledge of, authorized, or ratified the wrongful conduct for which the damages are awarded. (Civ. Code, § 3294, subd. (b).)

Given that Plaintiffs failed to allege sufficient facts to support their claim for fraudulent inducement – concealment, Plaintiffs also failed to allege sufficient facts to support punitive damages. Plaintiffs did not allege sufficient facts to show oppression, fraud, or malice.

Contrary to Plaintiffs' contention, Plaintiffs are not entitled to recover punitive damages for Plaintiffs' Song-Beverly causes of action. The Song-Beverly Act does not provide for punitive damages. (Civ. Code, § 1794.) Rather, it provides for civil penalties, which have been likened by some courts to punitive damages, in that they are imposed as punishment or deterrence of the defendant, rather than to compensate the plaintiff. (See, e.g., Suman v. Superior Court (1995) 39 Cal.App.4th 1309, 1317; Kwan v. Mercedes-Benz of North America, Inc. (1994) 23 Cal.App.4th 174, 184.) However, civil penalties are not punitive damages.

		Accordingly, Defendant's motion is **granted with 15 days leave to amend.**
57	***Reyes vs. Tight Quarters, Inc.***	Defendant Tight Quarters, Inc.'s Motion to Compel Arbitration and Stay the Proceedings Pending Completion of Arbitration is **GRANTED**. Defendant moves to compel enforcement of an arbitration agreement it contends Plaintiff Enrique Reyes signed when he completed his "onboarding" documents. The Federal Arbitration Act (FAA) applies to any dispute concerning an arbitration provision in a contract "evidencing a transaction involving commerce." (9 U.S.C. § 2.) This phrase is construed broadly and may apply to disputes between residents of the same state and in-state transactions that "affect" interstate commerce. (Khalatian v. Prime Time Shuttle, Inc. (2015) 237 Cal.App.4th 651.) "The 'principal purpose' of the FAA is to 'ensur[e] that private arbitration agreements are enforced according to their terms.'" (Lacayo v. Catalina Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257, citing AT&T Mobility LLC. v. Concepcion (2011) 563 U.S. 333, 344, 131 S.Ct. 1740.) "California law, like federal law, favors enforcement of valid arbitration agreements." (Baxter v. Genworth North America Corp. (2017) 16 Cal.App.5th 713, 721, citation omitted.) Arbitration provisions are to be interpreted broadly and "should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (EFund Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1321, citations omitted.) A party seeking to compel

		arbitration under section 1281.2 must plead and prove (1) the existence of a written arbitration agreement and (2) that the other party has refused to arbitrate. (Code Civ. Proc., § 1281.2; Mansouri v. Sup. Ct. (2010) 181 Cal.App.4th 633, 641.) "Whether an agreement to arbitrate exists is a threshold issue of contract formation and state contract law." (Avila v. Southern California Specialty Care, Inc. (2018) 20 Cal.App.5th 835, 843-844.) The party seeking to compel arbitration has the initial burden of "proving the existence of a valid agreement to arbitrate." If that burden is satisfied, "the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal. App. 4th 50, 59, citations omitted.) ***Existence of an Agreement to Arbitrate*** The Court finds Defendant has met its burden of showing that Plaintiff entered into an arbitration agreement that requires arbitration of the claims Plaintiff asserts in this action. The arbitration agreement states, in relevant part, that: "I and Tight Quarters Inc. (the "Company") agree to utilize binding individual arbitration to resolve all disputes that might arise out of or be related in any way to my application for employment and/or employment by the Company. Such disputes also include claims that the Company might bring against me, such as, for example, theft of money or trade secrets, breach of confidentiality agreement, or breach of a contract. I and the Company each specifically waive our respective rights to bring such claims against the other in a court of law and to have a trial by jury…." (Vega Decl. at ¶ 10, Exh. B.)

		In his opposition, Plaintiff does not challenge the assertion that he was presented with the "onboarding" documents; or, that the documents included the arbitration agreement; or, that the signature on the agreement is genuine. Nor does Plaintiff challenge whether his employment claims would be encompassed by the arbitration agreement. Instead, Plaintiff claims he is a "native Spanish speaker" and that he is "not fluent in English." Plaintiff further claims that he "did not read or understand anything that [he] was signing" and that "Defendant's agents did not explain the significance of any documents, including the arbitration agreement," to him. (ROA 43 [Reyes Decl. at ¶¶ 4-5.) Even assuming Plaintiff did not understand what he was signing, generally, this does not invalidate an arbitration agreement. "Generally, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. If a party does not speak or understand English sufficiently to comprehend a contract in English, it is incumbent upon the party to have it read or explained to him or her. [citations.]" (See Caballero v. Premier Care Simi Valley LLC (2021) 69 Cal.App.5th 512, 518-519.) Further, the Court finds the testimony from Defendant's office manager, Sabrina Vega, credible. She states that when she asked Plaintiff if he wanted the English or Spanish version of the onboarding documents, Plaintiff "requested the English version of the new hire forms." (Vegas Decl. at ¶ 7.) In sum, the Court finds Defendant met its burden of showing the existence of an agreement to arbitrate.

Defenses To Enforcement

Plaintiff contends the court should deny this motion, because the arbitration agreement "permeated with unconscionability." (Opp'n at p. 5.) For an arbitration agreement to be void under the doctrine of unconscionability, "the agreement must be both procedurally and substantively unconscionable." (Wherry v. Award, Inc. (2011) 192 Cal.App.4th 1242, 1246, citing Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114–121.) Procedural unconscionability focuses on "oppression" or "surprise" due to unequal bargaining power. Substantive unconscionability, on the other hand, looks at "overly harsh" or "one-sided" results. "But the two elements need not exist to the same degree. The more one is present, the less the other is required." (Ibid.) Under Armendariz, arbitration clauses in employment contracts should provide for: a neutral arbitrator; adequate discovery; a written award; and, no limitation on remedies. It also should not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (Armendariz v. Found. Health Psychcare Svcs., Inc. (2000) 24 Cal.4th 83, 102.)

Although there is some procedural unconscionability present, here, it does not exist to a "high" degree. As explained, above, the Court credits Ms. Vega's testimony that Plaintiff chose to receive the documents in English when given an option to choose between English or Spanish. Although Plaintiff claims the agreement "omits the name of the arbitration provider and fails to include the applicable arbitration rules," this argument cuts against finding unconscionability, because the choice of arbitrator was not unilaterally pre-designated by Defendant.

With respect to substantive unconscionability, Plaintiff points to the purported "lack of express provisions for Plaintiff's right to discovery." (Opp'n at pp. 8-9.) This argument is not well-taken, because the agreement expressly states that CCP section 1283.05 "and all of the Act's other mandatory and permissive rights to discovery shall also apply, and the arbitrator shall have the same authority as a state or federal court would have to issue subpoenas to third parties for production of documents and for depositions, in addition to subpoenas to appear at any arbitration hearing." Thus, the arbitration does not purport to limit Plaintiff's right to discovery that he would otherwise obtain under the Code. Plaintiff does not contend that any of the arbitration provisions otherwise fail to meet the Armendariz factors, e.g., a neutral arbitrator, adequate discovery, or payment of unreasonable costs.

Accordingly, the Court finds Plaintiff has not shown that the arbitration agreement is unenforceable.

The motion to compel arbitration is **GRANTED**. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.)

The Case Management Conference is vacated. The Court sets an arbitration status conference for **March 26, 2027**, at **9:00 a.m.** in Department C21.

Defendant shall give notice of the ruling.

58	***Taylor v. The Regents of the University of California***	Before the Court is Defendants The Regents of the University of California and Michael Dennin's Motion for a Protective Order that would preclude Plaintiff Roxanne Taylor from using a recorded conversation for any purpose in this lawsuit, including at the upcoming deposition of Michael Dennin (Dr. Dennin). Pursuant to the Code of Civil Procedure section 2025.420, "[b]efore, during, or after a deposition, any party . . . may promptly move for a protective order." (Code Civ. Proc., § 2025.420, subd. (a).) Courts are authorized to enter any protective order "that justice requires to protect any party, deponent, or other natural person . . . from unwarranted annoyance, embarrassment, or oppression," including "[t]hat certain matters not be inquired into." (Code Civ. Proc., § 2025.420, subd. (b)(9).) Here, Plaintiff alleges that Dr. Dennin disclosed her COVID-19 vaccination status during a conversation at a luncheon, which purportedly invaded her privacy and resulted in violations of the Confidential Medical Information Act ("CMIA") and the Information Practices Act ("IPA"). A few weeks after the luncheon, on or about July 15, 2021, Plaintiff had a one-on-one conversation with Dr. Dennin on Zoom that she recorded on her cell phone without Dr. Dennin's knowledge or consent. Evidence obtained from a tape recording of a confidential communication made without notice to the other parties to the conversation must be excluded under Penal Code § 632. (See Coulter v Bank of Am. (1994) 28 Cal.App.4th 923 (test of confidentiality is objective, not subjective); Frio v Superior Court (1988) 203 Cal.App.3d 1480, 1490

		(confidentiality only requires reasonable expectation by one party that no one is listening to conversation).) The California Supreme Court has held that Penal Code § 632 was abrogated in criminal matters by Cal Const art I, § 28(f)(2), which states that "relevant evidence shall not be excluded in any criminal proceeding." (People v Guzman (2019) 8 Cal.5th 673, 677.) Civil matters, however, are unaffected by this constitutional provision. (Id., supra, 8 Cal.5th at 683.) Thus, evidence obtained through electronic eavesdropping or recording of a confidential communication in violation of Pen. Code § 632 is inadmissible in any proceeding (except as proof in a criminal prosecution or tort action for a violation of Pen. Code § 632). (Pen. Code § 632(d); see Frio v. Sup.Ct. (Ierace) (1988) 203 Cal.App.3d 1480, 1490, 1495-1496.) Even a party to a confidential conversation is prohibited from recording the conversation without the consent of all other parties thereto. (Frio, supra, 203 Cal.App.3d at p. 1488.) Here, Plaintiff does not dispute that she recorded Dr. Dennin on or about July 15, 2021 in violation of Penal Code section 632. She concedes that: (1) Dr. Dennin did not consent to the recording; (2) the recording was confidential; and (3) Dr. Dennin had a reasonable expectation of privacy. She also does not dispute that the Court can make the adjudication now as to use of the recording during Dr. Dennin's deposition. Instead, she argues that she should be able to use the recording for impeachment purposes; she provides the Court with Dr. Dennin's responses to Request for Admissions where he denies

		disclosing Plaintiff's Covid-19 vaccination status at a luncheon. However, a party to a communication may testify as to its content (even if the party recorded the communication in violation of the Act) so long as there is no independent duty to maintain the confidence (e.g., attorney-client privilege). (Frio, supra, 203 Cal.App.3d at p. 1495.) If Plaintiff's testimony as to the content of the communication is not excluded, then case law does not support the use of the recorded video for impeachment purposes. (Frio, supra, 203 Cal.App.3d at pp. 1497–1499, "The permissibility of the use of writings obtained in violation of section 632 for impeachment depends upon whether the tape recorded party has been successful in asserting the evidentiary sanction. If Frio, the tape recording party, is allowed to state a present independent recollection of a communication, there is no need also to use the tainted evidence to impeach. If Frio's testimony has been excluded under section 632, the tape recorded party may not also use the evidentiary sanction as a license to lie.") The Motion for a Protective Order is **GRANTED.** The Court excludes the July 15, 2021 recorded conversation between Plaintiff and Dr. Dennin from use at Dr. Dennin's deposition. If needed, the Court will address its use at trial at a later date. Defendants are ordered to serve notice of this ruling.
59	***Vision En Analisis Y Estrategia, S.A. De C.V. et al. vs.***	Plaintiffs Vision En Analisis Y Estrategia, S.A. De C.V. and Capitaliza-T, Sociedad De Responsabilidad Limitada De Capital Variable's unopposed Motion for Leave to File Executed

	Christopher R. Irwin et al.	Version of Third Amended Complaint is **GRANTED**. Plaintiffs move, under CCP sections 473 and 576, for an order allowing them to file an executed version of their third amended complaint, which was previously filed on 9/5/25 (ROA 171). The amendment would correct the lack of signature on the prior version of the pleading. The Court finds Plaintiffs have complied with the requirements of Rule 3.1324 and that it is in the interests of justice to allow the amendment. (Code Civ. Proc. § 473, subd. (a)(1); see also Code Civ. Proc., § 576.) Plaintiffs shall file and serve the executed version of their Third Amended Complaint within 15 days from the date of this order. Plaintiffs are also ordered to serve notice of this ruling.